

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 25, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	24CV440130	Deluxe Windows and Clean Builders Company vs Gonzalez Family Realty LLC et al	Motion to Withdraw as Attorney Parties to appear.

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9:00 A.M.

Calendar Line # 2

Case Name Long Chen et al vs John Ly et al

Case No. 21CV376417

Motion to Set Aside Default/ Judgment

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

On January 18, 2021, Plaintiffs Long Chen as an individual and personal representative of the estate of Angeline Chen, Dan Zhu, and Bojian Li (collectively “Plaintiffs”) filed a Complaint against Defendants Dynasty Group, Inc. dba Dynasty Chiense Seafood Restaurant (“Dynasty”), Asian Square Inc. dba Grand Century Shopping Mall (“Asian Square”), John Ly, Nancy Dao, and DOES 1-100 (collectively “Defendants”) for damages arising from an October 11, 2021 personal incident where a vehicle collided into the dining area in the parking lot Dynasty Restaurant. Angeline Chen was affianced to Bojian Li and they were dining with her parents Long Chen and Dan Zhu. Following the incident, Angeline Chen succumbed to her injuries. Plaintiffs allege six causes of actions including: negligence, negligent entrustment, premises liability, negligent infliction of emotional distress, wrongful death, and wrongful death. (Complaint).

B. RELEVANT PROCEDURAL BACKGROUND

The underlying issue in this present motion stems from Defendant Asian Square’s acceptances of offers to compromise under Code of Civil Procedure section 998 that was served by plaintiffs’ counsel Aimee Kirby. Within hours of Asian Square’s accepting the offers to compromise, plaintiffs’ counsel notified Asian Square that Plaintiffs Long Chen and Dan Zhu had not provided informed consent for these offers.¹ Defendant Asian Square refused to revoke the acceptances of the offers to compromise and argued that the judgment was valid upon acceptance.

On December 6, 2023 the clerk’s office entered the three judgments of Defendant Asian Square’s acceptance of offer to compromise under Code of Civil Procedure section 998 as follows: (1) Plaintiff Long Chen against the defendants Asian Square in the amount of \$500,000.00; (2) Plaintiff Bojian Li against the defendants Asian Square in the amount of \$1,000,000.00; and (3) Plaintiff Dan Zhu against the defendants Asian Square in the amount of \$500,000.00. Defendant Asian Square filed a notice of entry of the clerk’s judgment in favor of Plaintiffs Long Chen, Bojian Li, and Dan Zhu against Defendant Asian Square on December 28, 2023.

Plaintiffs’ counsel filed a motion to vacate the December 6, 2023 judgments for Plaintiffs Long Chen and Dan Zhu on January 18, 2024. The motion was continued to April 25, 2024, and then heard by the Honorable Drew Takaichi, who took the matter under submission. On June 3, 2024, Judge Takaichi issued an order denying the motion to vacate. Defendant Asian Square entered an order on June 6, 2024.

Plaintiffs Long and Chen filed a notice of Appeal, H052309 on July 3, 2024. On May 1, 2026, the Sixth Appellate District issued a Remittitur reversing the June 3, 2024 judgment issued by Judge Takaichi. The Appellate Court directed the court to consider the motion a new and consider Code of Civil Procedure section 283. (Plaintiff’s Exhibit A).

C. PRESENT MOTION

Before the Court is the Plaintiffs renewed motion to vacate the December 6, 2023 judgments concerning Plaintiffs Long Chen and Dan Zhu. On August 4, 2026, the plaintiff filed its supplemental and second motion to vacate the

¹ Plaintiff Bojian Li ratified Ms. Kirby’s service of the 998 offer to compromise, thus plaintiff Li is not part of this present motion to vacate.